

Unique Identification Authority of India (Salary, Allowances and other Terms and Conditions of Service of Employees) Regulations, 2020

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Union of India - Act

Unique Identification Authority of India (Salary, Allowances and other Terms and Conditions of Service of Employees) Regulations, 2020

UNION OF INDIA

India

Unique Identification Authority of India (Salary, Allowances and other Terms and Conditions of Service of Employees) Regulations, 2020

Act 2 of 2020

Published on 21 January 2020

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Unique Identification Authority of India (Salary, Allowances and other Terms and Conditions of Service of Employees) Regulations, 2020

Published vide Notification No. A-12013/13/RR/2016-UIDAI (No. 2 of 2020), dated 21.1.2020

Last Updated 23rd January, 2020

No. A-12013/13/RR/2016-UIDAI (No. 2 of 2020). - In exercise of the powers conferred by sub-section (2) of section 21 read with clause (i) of sub-section (2) of section 54 of the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016 (

18 of 2016

), as amended vide the Aadhaar and Other Laws (Amendment) Act, 2019 (14 of 2019), the Unique Identification Authority of India hereby makes the following regulations, regulating the salary and allowances payable to, and other terms and conditions of service of, the Chief Executive Officer, officers and other employees of the Authority, namely: -

Chapter I

Preliminary

1.

Short title and commencement.

(1)

These regulations may be called the Unique Identification Authority of India (Salary, Allowances and other Terms and Conditions of Service of Employees) Regulations, 2020.

(2)

These regulations shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these regulations, unless the context otherwise requires, ?

(a)

"Act" means the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016 (18 of 2016

), as amended vide the Aadhaar and Other Laws (Amendment) Act, 2019 (14 of 2019);

(b)

"Appellate Authority" means the Chairperson where the Chief Executive Officer is the Disciplinary Authority and the Chief Executive Officer or such other officer to whom such powers have been assigned by the Authority in respect of any class or level of officers by general or special order in other cases;

(c)

"Authority" means Unique Identification Authority of India established under sub-section (1) of section 11 of the Act;

(d)

"Chairperson" means the Chairperson of the Authority appointed on full-time or part-time basis under section 12 of the Act;

(e)

"Chief Executive Officer" means the Chief Executive Officer of the Authority appointed under section 18 of the Act by the Central Government;

(f)

"Competent Authority" means the Chief Executive Officer or such other officer to whom any of his power(s) and/or function(s) are delegated by the Authority by general or special order;

(g)

"Disciplinary Authority" means the Chief Executive Officer or such other officer to whom any of his powers and/or functions are assigned by the Authority in respect of any class or level of officers by general or special order;

(h)

"duty" includes -

(i)

Service as a probationer,

(ii)

Period during which an employee is on joining time or training authorised by the Authority,

(iii)

Period spent on causal leave;

(i)

"employee" means any person appointed by and on the rolls of the Authority and shall include the officers and other employees of the Authority;

(j)

"Headquarter" means head office of the Authority as notified by the Central Government under Section 11 of the Act from time to time;

(k)

"level" means the level specified in the pay matrix under the Central Civil Services (Revised Pay) Rules, 2016 as modified, amended or substituted from time to time;

(l)

"pay matrix" means the pay matrix specified under the Central Civil Services (Revised Pay) Rules, 2016 as modified, amended or substituted from time to time;

(m)

"post" means any post in a grade whether permanent or temporary mentioned in the First Schedule annexed to these regulations;

(n)

"Regional Office" means regional offices of the Authority as notified by the Central Government under Section 11 of the Act from time to time,

(o)

"service" includes the period during which an employee is on duty as well as on leave duly authorised by the Competent Authority, but does not include any period during which an employee is absent from duty without permission or overstays his leave, unless specifically permitted by the Competent Authority, and

(p)

"Technology Centre" means offices for Central Identities Data Repository operations as notified by the Central Government under Section 11 of the Act.

(2)

The words and expressions used in these regulations, but not defined, shall have the same meaning as respectively assigned to them under the Act.

3.

Decision by the Competent Authority and appeal thereof.

(1)

The powers exercisable by the Competent Authority under these regulations shall also be exercisable by any authority superior to the Competent Authority.

(2)

The Chief Executive Officer or the officer to whom such powers have been vested under subregulation (1) shall be responsible for deciding on all complaints, grievances, disputes and other similar matters arising under these regulations:

Provided that any employee aggrieved of such decision may make an appeal against such decision within forty-five days of the issuance of the order conveying the decision, before ?

(a)

the Chief Executive Officer, where such orders have been passed by an officer subordinate to him; or

(b)

the Authority, where such orders have been passed by the Chief Executive Officer:

Provided further that the Chief Executive Officer shall not participate in the meeting of the Authority where an appeal on his decision is to be decided.

Chapter II

Categories of posts and classification

4.

Categories of posts, classification and pay.

(1)

The category of posts, their classification and the level in the pay matrix attached thereto shall be as specified in the First Schedule annexed to these regulations.

(2)

The inter-se allocation of the posts among different functional areas of Headquarter including Regional Offices and Technology Centre of the Authority shall be such as decided by the Chief Executive Officer from time to time.

Chapter III

Terms and conditions of service of the Chief Executive Officer

5.

Pay, allowances and other benefits to the Chief Executive Officer.

(1)

The Chief Executive Officer shall be eligible for such pay and allowances, leave, provident fund, accommodation from tenure pool, medical facilities under the Central Government Health Scheme, retirement and other terminal benefits as are admissible to the officers of the Central Government of equivalent grade:

Provided that nothing in these regulations shall prevent the Chief Executive Officer from opting for allowances, residential accommodation, medical facilities and such other benefits as are admissible to other officers of the Authority.

6.

Other terms and conditions of service of the Chief Executive Officer.

- The other terms and conditions of service of the Chief Executive Officer shall be governed by the corresponding rules and regulations of the Central Government.

Chapter IV

Pay, allowances and other benefits to employees

7.

Pay, allowances and other benefits.

(1)

The pay and allowances payable to the employees of the Authority shall be such as are admissible to the employees of the Central Government of corresponding grade.

(2)

The Authority may, at its discretion, from time to time frame such schemes and allow such other benefits for the welfare of the employees at such terms and conditions as it may deem fit.

8.

Accrual and payment of pay and allowances.

- Subject to the provisions of these regulations, pay and allowances shall accrue from the commencement of the service of an employee and shall become payable in the afternoon of the last working day of each month in respect of the service performed during the said month:

Provided that an employee proceeding on leave other than extraordinary leave for a period not less than one month may be paid in advance, one month's pay and allowances if he applies therefor.

9.

Pay and allowances when not payable for part of a month.

- Pay and allowances shall not be payable for a part of a month to an employee who leaves or discontinues his service without due notice during a month, unless such notice has been waived by the Competent Authority.

10.

Pay and allowances when cease to accrue.

(1)

Pay and allowances shall cease to accrue from the date an employee ceases to be in service.

(2)

In case of an employee dismissed, removed or compulsorily retired from the Authority's service, the pay and allowances shall cease from the date of his dismissal, removal or compulsory retirement. In the case of an employee who dies while in service, they shall cease from the day following that on which the death occurs.

11.

Admissibility of allowances.

- Allowances shall only be payable to employees who are satisfying the conditions subject to which such allowances are admissible.

12.

Increments.

- In an incremental scale, increment, unless withheld under provisions of these regulations, shall accrue in such a manner as admissible to the employees of the Central Government under corresponding grade.

13.

Re-fixation of pay on promotion and on confirmation.

- Pay of an employee promoted from one grade to another shall be fixed in such a manner as admissible to the employees of the Central Government under corresponding grade.

14.

Accommodation and house rent allowance.

(1)

The employees of the Authority shall be eligible for general pool residential accommodation for a period of five years from the date of notification of the establishment of the Authority, vide Directorate of Estates, Ministry of Housing and Urban Affairs Office Memorandum No. 11013/D/11/2009-Pol dated the 29th November 2017.

(2)

Employees of the Authority, not being allotted residential accommodation, shall be eligible for such House Rent Allowance as are admissible to the employees of the Central Government in the corresponding grade.

(3)

The Authority may create or acquire residential accommodation for its employees and determine a scheme for allotment thereof.

15.

Medical facility.

(1)

Employees of the Authority shall be entitled to medical facilities as specified in the Second Schedule annexed to these regulations.

(2)

Nothing in these regulations shall prevent employees of the Authority to avail medical facilities available under the Central Government Health Scheme for the class of employees eligible under the Scheme.

16.

Pension scheme.

- The employees of the Authority, other than those on deputation, shall be entitled to subscribe to the National Pension System and shall be governed by the provisions of the said scheme.

17.

Group insurance.

(1)

The employees of the Authority, other than those on deputation, shall be entitled to Group Insurance.

(2)

The scheme for Group Insurance shall be formulated by the Authority.

18.

Gratuity.

(1)

The employees of the Authority, other than those on deputation, shall be eligible for benefit of gratuity under Payment of Gratuity Act, 1972 (

39 of 1972

), as amended from time to time in the event of:

(a)

retirement;

(b)

death;

(c)

disablement rendering him unfit for further service as certified by the medical officer appointed by the Authority;

(d)

resignation after completing five years of continuous service; or

(e)

termination of service in any other way (except by way of punishment) after completion of five years of service.

(2)

For the purpose of sub-regulation (1), the Authority shall create Unique Identification Authority of India Gratuity Fund.

19.

Pension contribution and provident fund of persons on deputation.

(1)

The employees of the Authority appointed on deputation from the Central Government shall continue to be governed by the pension and provident fund scheme as are applicable to them in their parent cadre or Department, as the case may be, and the Authority shall make contribution towards pension and recover contribution towards provident fund from such employees and remit the amount immediately to the concerned Department. Any loss of interest on account of late remittance shall be borne by the Authority.

(2)

The employees of the Authority appointed on deputation from organisation other than the Central Government shall be eligible for contribution towards pension, contributory provident fund and retirement benefits as per the scheme applicable to them in their parent organisation.

20.

Leave.

(1)

The employees of the Authority shall be eligible for such leave as may be applicable to employees of the Central Government of corresponding grade.

(2)

For the purpose of leave, including leave salary, encashment of earned leave along with leave travel concession, leave/cash payment in lieu of leave beyond the date of retirement, compulsory retirement or quitting of service, cash equivalent of leave salary in case of death during service, cash equivalent of leave salary in case of invalidation from service, conditions related to grant of study leave and allowances applicable during the study leave and such other matters related to leave, the provisions of the Central Civil Services (Leave) Rules, 1972 as modified or substituted from time to time, and orders thereunder, shall apply, mutatis mutandis, to the employees of the Authority.

21.

Joining time.

(1)

The employees of the Authority shall be eligible for such joining time on transfer in public interest as may be applicable to employees of the Central Government of corresponding grade.

(2)

For the purpose of joining time, including the joining time pay and such other matters related to joining time, the provisions of the Central Civil Services (Joining Time) Rules, 1979 as modified or substituted from time to time and orders thereunder, shall apply, mutatis mutandis, to the employees of the Authority.

22.

Travel on official tours, transfer etc.

(1)

An employee of the Authority shall be liable to proceed on tour for official duty to any place within India or abroad as and when so required by the Authority for which he may be paid Travelling Allowance, Daily Allowance and such other allowances as admissible to the employees of the Central Government of corresponding grade.

(2)

For the purpose of regulating the claims of the employees of the Authority related to travel on official tours including foreign tours, transfer etc., the provisions of the rules applicable to the central government employees of the corresponding grade and orders thereunder, shall apply, mutatis mutandis, to the employees of the Authority.

23.

Leave Travel Concession.

(1)

The employees of the Authority shall be eligible for such leave travel concession as may be applicable to the employees of the Central Government of the corresponding grade.

(2)

For the purpose of leave travel concession, the provisions of the Central Civil Services (Leave Travel Concession) Rules, 1988, as modified or substituted from time to time and orders thereunder, shall apply, mutatis mutandis, to the employees of the Authority.

24.

Career progression.

- The provisions of Modified Assured Career Progression Scheme for the central government civilian employees, as modified or substituted from time to time, shall apply, mutatis mutandis, to the employees of the Authority on the same conditions as laid down by the Central Government for its employees from time to time.

25.

Children Education Allowance Scheme.

- The Children Education Allowance Scheme as applicable to the central government employees of corresponding grade, as modified or substituted from time to time, shall apply, mutatis mutandis, to the employees of the Authority.

26.

Loans and advances.

- The Central Government's rules and orders on interest free and interest bearing loans and advances applicable to the employees of the Central Government, as modified or substituted from time to time, shall, mutatis mutandis, apply to the employees of the Authority.

27.

Other benefits and entitlements.

- All other rules and orders issued by the Central Government from time to time to govern the benefits and entitlements for the employees of the Central Government, which have not been expressly covered under these regulations, shall, mutatis mutandis, apply to the employees of the Authority.

Chapter V

Conduct, discipline and appeal

28.

Scope of an employee's service.

- Unless it be otherwise distinctly provided, the whole time of an employee shall be at the disposal of the Authority and he shall serve the Authority in its activities in such capacity and at such place as he may from time to time be directed.

29.

Liability to abide by the Act, Regulations and Orders.

- Every employee shall conform to, abide by and profess allegiance towards the provisions of the Act and the rules and regulations issued thereunder and shall observe, comply with and obey all orders and directions which may from time to time be given to him by any person or persons under whose jurisdiction, superintendence or control he may for the time being be placed.

30.

Obligation to maintain secrecy.

(1)

Every employee shall maintain strictest secrecy regarding the Authority's affairs and shall not divulge or disclose, directly or indirectly, any information of a confidential nature or relating to the working of the Authority to a member of the public or to the Authority's employees or to his friends or relatives, unless compelled to do so by judicial or other authority or unless instructed to do so by a superior officer in the discharge of his duties.

(2)

No employee shall make use of any information emanating from the Authority or otherwise which has come to his knowledge in the discharge of his official duties, for his personal benefit or for the benefit of his friends or relatives.

(3)

No employee shall communicate any unpublished sensitive information to any other person except when required to do so in the course of his official duty.

(4)

Every employee, including those who are on deputation or on temporary basis shall, before entering upon his duties, make a declaration of fidelity and secrecy in the Form - I annexed to these regulations.

31.

Employees to promote Authority's interest.

(1)

Every employee shall serve the Authority honestly and faithfully and shall use his utmost endeavours to promote the interests of the Authority and shall show utmost courtesy and attention in all transactions and dealings with the public, between the officers of government and the Authority.

(2)

Every employee shall at all times:

(a)

maintain absolute integrity, good conduct and discipline;

(b)

maintain devotion and diligence to duty; and

(c)

do nothing which is unbecoming of an employee or a public servant.

(3)

No employee shall in his official dealings with the public or otherwise adopt dilatory tactics or wilfully cause delays in disposal of the work assigned to him.

(4)

No employee, shall, in the performance of his official duties or in the exercise of powers conferred on him, act otherwise than in his best judgement except when he is acting under the direction of his superior.

(5)

Every employee shall take all possible steps to ensure the integrity and devotion to duty of all persons for the time being under his control and authority.

32.

Prohibition against participation in politics and standing for election.

- No employee shall take active part in politics or in any political demonstration, or stand for election as member of a Municipal Council, District Authority or any other Local Body or any Legislative Body.

33.

Prohibition against joining certain associations and strikes, etc.

- No employee who is not a 'workman' within the meaning of the Industrial Disputes Act, 1947 shall:

(a)

Become or continue to be a member or office bearer of, or be otherwise directly or indirectly associated with, any trade union of employees of the Authority who are 'workmen' within the meaning of that Act, or a federation of such trade unions; or

(b)

Resort to, or in any way abet, any form of strike or participate in any violent, unseemly or indecent demonstration in connection with any matter pertaining to his conditions of service or the conditions of service of any other employee of the Authority.

34.

Contributions to the press.

(1)

No employee shall contribute to the press or make public or publish any document, paper or information which may come in his possession in his official capacity without prior sanction of the Competent Authority.

(2)

No employee shall except with the prior sanction of the Competent Authority publish or cause to be published any book or any similar printed matter of which he is the author or not or deliver talk or lecture in any public meeting or otherwise. Provided that no such sanction is required, if such broadcast or contribution or publication is of a purely literary, artistic, scientific, professional, cultural, educational, religious or social character.

35.

Employee not to seek outside employment.

- No employee shall accept, solicit or seek any outside employment or office, whether stipendiary or honorary, without the prior sanction of the Competent Authority.

36.

Employment after retirement.

(1)

No employee of the Authority who has retired from service shall, within a period of two years from the date when he finally ceases to be in the Authority's service, accept or undertake a commercial employment except with the prior approval in writing of the Competent Authority.

(2)

For the purpose of this regulation, "commercial employment" means:

(a)

Employment in any capacity including that of an agent under a company, cooperative society, firm or individual engaged in trade or commercial, industrial or professional business and also includes a directorship of such a company and partnership of such firm but does not include employment under a body wholly or substantially held or controlled by the Central or State Government.

(b)

Setting up a practice, either independently or as partner of a firm, as adviser or consultant in matters in respect of which the retired employee-

i. has no professional qualifications and the matters in respect of which the practice is to be set up or is carried on are relatable to his official knowledge or experience, or

ii. the matters in respect of which such practice is to be set up are such as are likely to give his clients an unfair advantage by reason of his previous official position, or

(c)

Undertaking work involving liaison or contact with the offices or officers of the Authority.

Explanation. - For the purpose of this clause, "employment under a cooperative society" includes the holding of any office, whether elective or otherwise such as that of President, Chairman, Manager, Secretary, Treasurer and the like, by whatever name called in such society.

(3)

Notwithstanding anything contained in sub-regulation (1), no employee of the Authority shall within a period of two years from the date that he finally ceases to be in the Authority's service, accept or undertake an employment or be in any manner associated with an intermediary registered with the Authority, except with the prior written approval of the Competent Authority:

Provided that before refusing approval, the Competent Authority shall give an opportunity of being heard to the concerned employee. A copy of such decision shall be communicated by the Competent Authority to the said employee.

(4)

The Competent Authority while granting such approval shall satisfy itself regarding the appropriateness of granting the approval, having regard to the dealings which the employee may have had with the said intermediary while in the services of the Authority; and may impose such conditions as may be necessary having regard to the circumstances of the case including:

(a)

Prohibiting the employee from representing the intermediary in any manner before the Authority.

(b)

Seeking a fresh approval from the Authority in the event of the employee accepting or undertaking employment or associating in any manner with another intermediary registered with the Authority, during the period of two years.

(5)

The approval/refusal under this regulation shall be communicated to the employee by the Competent Authority within a period of 90 days from the date of receipt of the application for such approval, failing which the approval shall be deemed to have been granted.

37.

Employment of family members in companies or firms having dealings with the Authority.

(1)

No employee shall use his position or influence directly or indirectly to secure employment in a company or a firm having dealings with the Authority, of any person related, whether by blood or marriage to the employee or to the employee's

wife or husband, whether such a person is dependent on the employee or not.

(2)

Every employee shall report to the Competent Authority in case his son or daughter or any other member of his family accepts employment, in any company or firm having dealings with the Authority, with which he has official dealings or in any undertaking having official dealings with the Authority.

38.

Giving evidence.

(1)

Save as provided in sub-regulation (3) no employee shall, except with the prior approval of the Competent Authority, give evidence in connection with any enquiry conducted by any person, committee or authority.

(2)

Where any approval has been accorded under sub-regulation (1), no employee giving such evidence shall criticize the policy or any action of the Central Government or the State Government or the Authority.

(3)

Nothing in this regulation shall apply to any evidence given:

(a)

at any enquiry before an authority appointed by the Central Government, State Government, Parliament or a State Legislature; or

(b)

in any judicial enquiry; or

(c)

at any departmental enquiry ordered by the Competent Authority.

39.

Seeking to influence.

- No employee shall bring or attempt to bring any political or other outside influence to bear upon any superior authority to further his interests in respect of matters pertaining to his services in the Authority.

40.

Part-time work.

- No employee shall undertake part-time work for a private or public body or a private person, or accept any fee therefor, without the sanction of the Competent Authority which shall grant the sanction only in exceptional cases when it is satisfied that the work can be undertaken without detriment to his official duties and responsibilities. The Competent Authority may, in cases in which it thinks fit to grant such sanction, stipulate that any fees received by the employee for undertaking the work shall be paid, in whole or in part, to the Authority.

41.

Employee not to be absent from duty without permission or be late in attendance.

(1)

An employee shall not absent himself from his duties without having first obtained the permission of the Competent Authority, nor shall absent himself in case of sickness or accident without submitting a requisite medical certificate.

Provided that in the case of temporary indisposition, the production of a medical certificate may, at the discretion of the Competent Authority, be dispensed with.

(2)

An employee who absents himself from duty without leave or overstays his leave, except under circumstances beyond his control for which he must tender a satisfactory explanation, shall not be entitled to draw any pay and allowances during such absence or overstay and shall further be liable to such disciplinary measures as the Competent Authority may impose. The period of such absence or overstay may, if not followed by discharge under regulation 12 (4) of the Unique Identification Authority of India (Appointment of Officers and Employees) Regulations, 2020 or compulsory retirement or removal or dismissal under regulation 60, be treated as period spent on extraordinary leave.

(3)

An employee who is habitually late in attendance shall, in addition to such other penalty as the Competent Authority may deem fit to impose, have half-a-day of casual leave forfeited for every day on which he is late in a month. Where such an

employee has no casual leave due to him, the period of leave to be so forfeited may be treated as ordinary or extraordinary leave as the Competent Authority may determine.

42.

Acceptance of gifts.

- An employee shall not solicit or accept any gift or permit any member of his family or any person acting on his behalf to accept any gift from any person with whom the employee is likely to have official dealings, either directly or indirectly, or from any subordinate employee.

Explanation. - The expression "gift" shall include free transport, boarding, lodging or other service or any other pecuniary advantage when provided by any person other than a near relative or a personal friend having no official dealings with the employee or with the Authority.

Note 1: A casual meal, lift or other social hospitality shall not be deemed to be a gift.

Note 2: An employee shall avoid acceptance of lavish or frequent hospitality from any individual or concern having official dealings with the employee or with the Authority.

(2)

On occasions such as marriages, anniversaries, funerals or religious functions when the making of gifts is in conformity with the prevailing religious or social practice, an employee may accept gifts from his personal friends having no official dealing with the employee or with the Authority, but he shall make a report to the Competent Authority if the value of such gifts exceeds Rs.10,000.

(3)

An employee shall not -

(a)

Give or take, or abet the giving or taking, of dowry; or

(b)

Demand directly or indirectly from the parents or guardians of a bride or bridegroom, as the case may be, any 'dowry'.

Explanation. - In this regulation, the term 'dowry' shall have the same meaning as in the Dowry Prohibition Act, 1961.

43.

Private trading.

- No employee shall engage in any commercial business or pursue it either on his own account or as an agent for others, nor act as an agent for an insurance company nor shall he be connected with the formation or management of a joint stock company.

Explanation. - Canvassing by an employee in support of the business of any insurance agency or commission agency carried on or managed by a member of his family shall be deemed to be a breach of this regulation.

44.

Restrictions on investments.

(1)

An employee can make investments in equity and equity related instruments, including convertible debentures and warrants, up to two times the monthly gross salary of the concerned employee. Prior approval of the Authority shall be obtained where the investment exceeds this limit.

(2)

The restrictions under sub-regulation shall apply to:

i. Investments of the employees;

ii. Investments of dependent children or other wards managed by the employee as a guardian;

iii. Investment made by the spouse, dependent children, dependent parents and dependent parents-in-law of the employee, out of the moneys received from the employee.

45.

Speculation in stocks, shares, investments, etc.

(1)

An employee shall not indulge in badla trading or trade, speculate in stock, shares, securities or commodities of any description.

(2)

No employee, shall, when in knowledge of unpublished price sensitive information, encourage any person to deal in the

securities to which it relates.

46.

Movable, immovable and valuable property.

(1)

Subject to the provisions of any law or rule made by the Central Government in force, every employee, shall, on his first appointment, and thereafter every year on 31st December, irrespective of whether or not there has been any change in the holding, furnish to the Authority within one month a return of his immovable property, in such form as may be specified by the Authority, giving full particulars regarding the property inherited by him, or owned or acquired or held by him on lease or mortgage, either in his name or in the name of any member of his family.

(2)

No employee shall, except with the previous knowledge of the Competent Authority, acquire or dispose of any immovable property by lease, mortgage, purchase, sale, gift or otherwise either in his own name or in the name of any member of his family.

Provided that the prior sanction of the Competent Authority shall be obtained by the employee if any such transaction is with a person having official dealings with the employee.

(3)

Where an employee enters into a transaction in respect of movable property either in his own name or in the name of the member of his family, he shall, within 30 days from the date of such transaction, report the same to the Competent Authority, if the value of such property exceeds his basic pay for two months.

Provided that the prior sanction of the Competent Authority shall be obtained by the employee if any such transaction is with a person having official dealings with the employee.

(4)

The Competent Authority may, at any time, by general or special order require an employee to furnish within a period specified in the order, a full and complete statement of such movable or immovable property held or acquired by him or on his behalf or by any member of his family as may be specified in the order. Such statement shall, if so required by the Competent Authority, include the details of the means by which, or the source from which, such property was acquired.

47.

Lending and Borrowings.

- No employee shall in his individual capacity -

i. borrow or permit any of his dependent family members to borrow or otherwise place himself or any of his dependent family members under a pecuniary obligation to a broker or a money lender or a subordinate employee of the Authority or any person, association of persons, firm, company or institution, whether incorporated or not, having dealings with the Authority;

ii. incur debts at a race meeting;

iii. lend money in private capacity to a constituent of the Authority or have personal dealings with such constituent in the purchase or sale of bills of exchange, Government paper or any other securities; and iv. guarantee in his private capacity, the pecuniary obligations of another person or agree to indemnify in such capacity another person from loss except with the previous permission of the Competent Authority;

Provided that an employee may obtain a loan from a cooperative credit society of which he is a member or stands as surety in respect of a loan taken by another member from a cooperative credit society of which he is a member.

48.

Demonstrations.

- No employee shall engage himself or participate in any demonstration which is prejudicial to the interests of the Authority, sovereignty and integrity of India, the security of the State, friendly relations with foreign States, public order, decency or morality, or which involves contempt of court, defamation or incitement of an offence.

49.

Joining of association prejudicial to the interests of the country.

- No employee shall join, or continue to be a member of an association, the objects or activities of which are prejudicial to the interests of the Authority, sovereignty and integrity of India or public order or morality.

50.

Raising of subscriptions.

- No employee shall, except with the prior sanction of the Competent Authority, ask for or accept a contribution to or otherwise associate himself with the raising of any funds or other collections in cash or in kind in pursuance of any objective whatsoever.

51.

Not to misuse official position.

(1)

No employee, shall:

(a)

Ever encourage outside agencies to call on him at his residence or temporary headquarters while on tour for discussion on official matters.

(b)

In dealing with the ecosystem partners and public for seeking any clarification on matters relating to them, resort to oral clarifications and personal discussions as far as possible and written communication shall be the normal practice.

(c)

Use office facilities like letter heads for non-official or personal purposes.

(d)

Ever be involved in any type of activities/favours and physical facilities so as to place himself in an embarrassing position in the discharge of his duties with integrity and fairness.

(2)

An employee is strictly prohibited from using his official position for any personal favour for himself or his family members or his relatives or friends.

52.

Consumption of intoxicating drinks and drugs.

(1)

An employee shall strictly abide by any law relating to intoxicating drinks or drugs in force in any area in which he may happen to be posted for the time being.

(2)

It is also the duty of the employee to see that -

(a)

He is not under influence of any intoxicating drink and drug during the course of his duty and that he also takes due care that the performance of his duty is not affected in any way by the influence of any intoxicating drink or drug;

(b)

He does not appear in a public place in a state of intoxication; and

(c)

He does not habitually use any intoxicating drink or drug in excess.

Explanation. - For the purpose of this regulation, the term "public place" means any place or premises (including a conveyance) to which the public have or are permitted to have access, whether on payment or otherwise.

53.

Employees in debt.

(1)

An employee shall so manage his private affairs as to avoid habitual indebtedness or insolvency. An employee, against whom any legal proceeding is instituted for the recovery of any debt due from him or for adjudging him as an insolvent, shall forthwith report the full facts of the legal proceedings to the Competent Authority.

(2)

An employee who is in debt shall furnish to the Competent Authority, a signed statement of his position half-yearly on the 30th June and 31st December and shall indicate in the statement the steps he is taking to rectify his position. An employee, who makes a false statement under this regulation or who fails to submit the specified statement or appears unable to liquidate his debts within a reasonable time or applies for the protection of an insolvency court, shall be liable to disciplinary action.

Explanation 1. - For the purpose of this regulation, an employee shall be deemed to be in debt if his total liabilities exclusive of those which are fully secured exceed his substantive pay for twelve months.

Explanation 2. - An employee shall be deemed to be unable to liquidate his debts within a reasonable time if it appears, having regard to his personal resources and unavoidable current expenses, that he will not cease to be in debt within a period of two years.

54.

Employees arrested for debt or on criminal charge.

(1)

An employee who is arrested for debt or on a criminal charge or is detained in pursuance of any process of law may, if so directed by the Competent Authority, be considered as being or having been under suspension from the date of his arrest or, as the case may be, of his detention, up to such date or during such other period as the Competent Authority may direct. In respect of the period in regard to which he is so treated, he shall be allowed the payment admissible to an employee under suspension under sub-regulation (6) of regulation 67.

(2)

Any payment made to an employee under sub-regulation (1) shall be subject to adjustment of his pay and allowances, which shall be made according to the circumstances of the case and in the light of the decision as to whether such period is to be accounted for as a period of duty or leave;

Provided that full pay and allowances will be admissible only if the employee -

(a)

is treated as on duty during such period; and

(b)

is acquitted of all blame or satisfies the Competent Authority, in the case of his release from detention being set aside by a competent court, that he had not been guilty of improper conduct in his detention.

(3)

An employee shall be liable to dismissal or to any of the other penalties referred to in regulation 60, if he is committed to prison for debt or is convicted for an offence which, in the opinion of the Competent Authority, either involves gross moral turpitude or has a bearing on any of the affairs of the Authority or on the discharge by the employee of his duties with the Authority; the opinion in this respect of the Competent Authority shall be conclusive and binding on the employee. Such dismissal or other penalty may be imposed from the date of his committal to prison or conviction and nothing in regulation 61 and 63 shall apply to such imposition.

(4)

Where an employee has been dismissed in pursuance of sub-regulation (3) and the relative conviction is set aside by a higher court and the employee is acquitted, he shall be reinstated in service.

Explanation. - In this regulation, committal or conviction shall mean committal or conviction by the lowest court or any appellate court.

(5)

Where the absence of an employee from duty without leave or his overstay is due to his having been arrested for debt or on a criminal charge or to his having been detained in pursuance of any process of law, the provisions of regulation 41 shall also apply and for the purposes of that regulation as so applied, the employee shall be treated as having absented himself without leave or, as the case may be, overstayed, otherwise than under circumstances beyond his control.

55.

Vindication of acts and character of employee.

(1)

No employee shall, except with the prior sanction of the Competent Authority, have recourse to any Court or to the press, for the vindication of any official act which has been the subject matter of adverse criticism or an attack of a defamatory character.

(2)

Nothing in this regulation shall be deemed to prohibit an employee from vindicating his private character or any act done by him in private capacity and where any action for vindicating his private character or any act done by him in private capacity is taken, the employee shall submit a report to the Competent Authority regarding such action.

56.

Not to address appeals, representations, petitions to outside authority or person.

- No employee shall address any appeal, representation or petition to any outside authority or person, in respect of a

matter pertaining to the employee's service in the Authority. Addressing such appeals, representations or petitions shall be deemed to be a breach of discipline.

57.

Criticism of Authority or Government.

- No employee shall, in any radio broadcast, telecast through any electronic media or any document published in his own name or anonymously, pseudonymously or in the name of any other person or in any communication to the press or in any public utterance, make any statement of fact or opinion which has the effect of an adverse criticism of any current or recent policy or action of the Authority or Government.

Provided that nothing in this regulation shall apply to any statements made or views expressed by an employee in his official capacity or in the due performance of the duties assigned to him.

58.

Not to misuse residential accommodation or other facilities.

(1)

An employee shall not misuse the residential accommodation or any other facility or concession granted by the Authority or Government.

(2)

Save as otherwise expressly permitted by the Authority, no employee shall, sub-let, lease or otherwise allow occupation by any other person of residential accommodation which has been allotted to him by the Authority or Government.

(3)

An employee shall, after the determination or cancellation of his allotment of residential accommodation, vacate the same within the time limit specified by the allotting authority.

59.

Prohibition of Sexual Harassment of Women Employee at Work Place.

(1)

No employee shall indulge in any act of sexual harassment of any women employee at the work place.

(2)

For the purpose of sub-regulation (1), sexual harassment shall mean unwelcome sexually determined behaviour, whether directly or by implication, including:-

(a)

physical contact and advances;

(b)

a demand or request for sexual favours;

(c)

sexually coloured remarks;

(d)

showing pornography; or

(e)

any other unwelcome physical, verbal, or non-verbal conduct of a sexual nature.

(3)

Any complaint of violation of sub-regulation (1) shall be dealt by the Complaints Committee set up by the Authority, the composition of which shall be as per the provisions of the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013.

(4)

The Complaints Committee may evolve its own procedure for dealing with complaints received by it.

(5)

Without prejudice to the provisions contained in sub-regulation (4), where the Complaints Committee is of the opinion that the complaint is motivated or frivolous, it may close the complaint under intimation to the complainant and the Authority.

(6)

When the Complaints Committee is of the opinion that there are grounds for inquiring into the truth of any such complaint, it shall initiate an inquiry into the truth thereof, after recording the reasons therefor.

(7)

Any inquiry initiated by the Complaints Committee under sub-regulation (6) pursuant to any such complaint shall be deemed to be an inquiry within the meaning of regulation 61 and accordingly:

(i)

the Complaints Committee shall be deemed to be an Inquiry Officer appointed with respect to such complaint and shall have all the powers, functions and duties of an inquiry officer as provided in that regulation;

(ii)

the proceedings shall be held, as far as may be, in accordance with that regulation, subject to the following modifications, namely: -

(a)

that the charges shall be framed and communicated to the employee by the Complaints Committee (instead of the Disciplinary Authority) under sub-regulation (3) thereof; and

(b)

the written statement of defence of the employee shall be sent to the Complaints Committee (instead of to the Disciplinary Authority).

(iii)

the findings of the Complaints Committee shall be in the form of a report, which complies with the requirements of sub-regulation (9) of regulation 61 and such report shall be deemed to be an inquiry report for the purposes of these regulations.

(8)

Nothing contained in this regulation shall be construed to prejudice the powers of the Complaints Committee to provide counselling or other support service.

60.

Penalties.

- Without prejudice to the other provisions of these regulations, an employee who commits a breach of any regulation of the Authority or who displays negligence, inefficiency or indolence, or who knowingly does anything detrimental to the interests of the Authority or in conflict with its instructions, or who commits a breach of discipline or is guilty of any other act of misconduct, shall be liable to the following penalties:

A. Minor penalties

(a)

Censure;

(b)

Withholding of promotion;

(c)

Recovery from pay of the whole or part of any pecuniary loss caused to the Authority by the employee by negligence or breach of orders;

(d)

Reduction to a lower stage in the time scale of pay for a period not exceeding three years without cumulative effect;

(e)

Withholding of increments of pay;

B. Major penalties

(a)

Save as provided for in sub-clause (d) of clause A, reduction to a lower stage in the time scale of pay for a specified period with further directions as to whether or not the employee shall earn increments of pay during the period of such reduction and whether on the expiry of such period, the reduction shall or shall not have the effect of postponing the future increments of his pay;

(b)

Reduction to a lower time scale of pay, grade, post or service which shall ordinarily be a bar to the promotion of the employee to the time scale of pay, grade, post or service from which he was reduced, with or without further directions regarding conditions of restoration to the grade or post or service from which the employee was reduced and his seniority and pay on such restoration to that scale of pay, grade, post or service;

(c)

Compulsory retirement;

(d)

Removal from service which shall not be a disqualification for future employment;

(e)

Dismissal from service which shall ordinarily be a disqualification for future employment.

Explanation. - The following shall not amount to a penalty within the meaning of this regulation namely:-

i. Withholding of one or more increments of an employee on account of his failure to pass a specified departmental test or examination in accordance with the terms of appointment to the post which he holds.

ii. Non-promotion whether in an officiating capacity or otherwise, of an employee, to a higher grade or post for which he may be eligible for consideration but for which he is found unsuitable after consideration of his case;

iii. Reversion to a lower grade or post, of an employee officiating in a higher grade or post, on the ground that he is considered, after trial, to be unsuitable for such higher grade or post, or on administrative grounds unconnected with his conduct;

iv. Reversion to his previous grade or post, of an employee appointed on probation to another grade or post, during or at the end of the period of probation, in accordance with the terms of his appointment or regulations or orders governing such probation;

v. Termination of the service :-

a. of an employee appointed on probation, during or at the end of the period of probation, in accordance with the terms of his appointment, or the regulations or orders governing such probation;

b. of an employee appointed in a temporary capacity otherwise than under a contract or agreement, on the expiration of the period for which he was appointed, or earlier in accordance with the terms of his appointment;

c. of an employee appointed under a contract or agreement, in accordance with the terms of such contract or agreement ; and

d. of an employee on abolition of post.

vi. Termination of employment of an employee on medical grounds, if he is declared unfit to continue in the Authority's service by the medical officer appointed by the Authority;

vii. Retirement of an employee in accordance with provisos to regulation 73(1).

61.

Procedure for imposing major penalties.

(1)

No order imposing any of the major penalties specified in clause B of regulation 60 shall be made except after an inquiry is held in accordance with this regulation.

(2)

Whenever, the Disciplinary Authority is of the opinion that there are grounds for inquiring into the truth of any imputation of misconduct or misbehaviour against an employee, it may itself inquire into or appoint any other officer of the Authority or any person not below the rank of retired District Judge, retired High Court Judge, retired Joint Secretary or equivalent level officer of the Central Government or Central Autonomous Body, retired Secretary to any State Government or retired Executive Director or equivalent officer of any Public Sector Undertaking (hereinafter referred to as the inquiry officer) to inquire into the truth thereof.

Explanation. - A breach of any of the provisions of these regulations shall be deemed to constitute misconduct. The enquiry under this regulation, shall be done, in case the employee against whom proceeding is taken is a Group A officer, by any officer who is in a grade higher than such employee and in the case of other employees, any Group A officer.

Explanation. - When the Disciplinary Authority itself holds the inquiry, any reference in subregulation (8) and sub-regulation (9) to the Inquiry Officer shall be construed as a reference to the Disciplinary Authority.

(3)

Where it is proposed to hold an inquiry, the Disciplinary Authority shall frame definite and distinct charges on the basis of the allegation against the employee and the articles of charge, together with a statement of the allegations, on which they are based and shall communicate in writing to the employee, who shall be required to submit within such time as may be specified by the Disciplinary Authority (not exceeding 15 days), or within such extended time as may be granted

by the said authority, a written statement of his defence.

(4)

On receipt of the written statement of the employee, or if no such statement is received within the time specified, an inquiry may be held by the Disciplinary Authority itself, or if it considers it necessary so to do appoint under sub-regulation (2) an Inquiry Officer for the purpose.

Provided that it may not be necessary to hold an inquiry in respect of the articles of charge admitted by the employee in his written statement but shall be necessary to record its findings on each such charge.

(5)

The Disciplinary Authority shall, where it is not the Inquiry Officer, forward to the Inquiry Officer;

- i. a copy of the articles of charges and statements of imputations of misconduct or misbehaviour;
- ii. a copy of the written statement of defence, if any submitted by the employee;
- iii. a list of documents by which and list of witnesses by whom the articles of charge are proposed to be substantiated;
- iv. a copy of statements of the witnesses, if any;
- v. evidence providing the delivery of articles of charge under sub-regulation (3);
- vi. a copy of the order appointing the 'Presenting Officer' in terms of sub-regulation (6).

(6)

Where the Disciplinary Authority itself inquires or appoints an inquiring authority for holding an inquiry, it may, by an order, appoint an officer to be known as the "Presenting Officer" to present on its behalf the case in support of the articles of charge.

(7)

The employee may take the assistance of any other employee, but may not engage a legal practitioner, for the purpose, unless the presenting officer appointed by the Disciplinary Authority, is a legal practitioner or the Disciplinary Authority having regard to the circumstances of the case, so permits.

(8)

The procedure that shall be followed for the said inquiry is as under:-

(a)

The Inquiry Officer shall by notice in writing, specify the day on which the employee shall appear in person before the Inquiry Officer.

(b)

On the date fixed by the Inquiry Officer, the employee shall appear before the Inquiry Officer at the time, place and date specified in the notice.

(c)

The Inquiry Officer shall ask the employee whether he pleads guilty or has any defence to make and if he pleads guilty to any of the Articles of charge, the Inquiry Officer shall record the plea, sign the record and obtain the signature of the employee concerned thereon.

(d)

The Inquiry Officer shall return a finding of guilt in respect of those articles of charge to which the employee concerned pleads guilty.

(e)

If the employee does not plead guilty, the Inquiry Officer shall adjourn the case to a later date not exceeding 30 days.

(f)

The Inquiry Officer shall, where the employee does not admit all or any of the articles of charge, furnish to such employee a list of documents by which, and a list of witness by whom, the articles of charge are proposed to be proved.

(g)

The Inquiry Officer shall also record an order that the employee may for the purpose of preparing his defence:

- i. inspect within five days of the order or within such further time not exceeding five days, as the inquiring officer may allow, the documents listed;
- ii. submit a list of documents and witnesses that he wants for the inquiry;
- iii. be supplied with copies of statements or witnesses to be relied upon, if any, recorded earlier and the Inquiry Officer shall furnish such copies not later than three days before the commencement of the examination of the witnesses by the Inquiry Officer;

iv. give a notice within ten days of the order or within such further time not exceeding ten days as the Inquiring Officer may allow for the discovery or production of the documents referred to in item (ii).

Note: The relevancy of the documents and the examination of the witnesses referred to in sub clause (ii) shall be given by the employee concerned.

(h)

The Inquiry Officer shall, on receipt of the notice for the discovery or production of the documents, forward the same or copies thereof to the authority in whose custody or possession the documents are kept with a requisition for the production of the documents on such date as may be specified.

(i)

On the receipt of the requisition under clause (h), the authority having the custody or possession of the requisitioned documents shall arrange to produce the same before the Inquiry Officer on the date, place and time specified in the requisition;

Provided that the authority having the custody or possession of the requisitioned documents may claim privilege, if the production of such documents will be against the public interest or the interest of the Authority. In that event, it shall inform the Inquiry Officer accordingly.

(j)

On the date fixed for the inquiry, the oral or documentary evidence by which the articles of charge are proposed to be proved, shall be produced by or on behalf of the Disciplinary Authority. The witnesses produced by the Presenting Officer shall be examined by the Presenting Officer and may be cross-examined by or on behalf of the employee. The Presenting Officer shall be entitled to re-examine his witnesses on any points on which they have been cross-examined, but not on a new matter, without the leave of the Inquiry Officer. The inquiry officer may also put such questions to the witnesses.

(k)

Before the close of the case, in support of the charges, the Inquiry Officer may, in its discretion, allow the Presenting Officer to produce evidence not included in charge-sheet or may itself call for new evidence or recall or re-examine any witness. In such case, the employee shall be given opportunity to inspect the documentary evidence before it is taken on record, or to cross-examine a witness, who has been so summoned. The Inquiry Officer may also allow the employee to produce new evidence, if it is of opinion that the production of such evidence is necessary in the interests of justice.

(l)

When the case in support of the charges is closed, the employee may be required to state his defence, orally or in writing, as he may prefer. If the defence is made orally, it shall be recorded and the employee shall be required to sign the record. In either case, a copy of the statement of defence shall be given to the Presenting Officer, if any, appointed.

(m)

The evidence on behalf of the employee shall then be produced. The employee may examine himself in his own behalf, if he so prefers. The witnesses produced by the employee shall then be examined by the employee and may be cross-examined by the Presenting Officer. The employee shall be entitled to re-examine any of his witnesses on any points on which they have been cross-examined, but not on any new matter without the leave of the Inquiry Officer.

(n)

The Inquiry Officer may, after the employee closes his evidence, and shall, if the employee has not got himself examined, generally question him on the circumstances appearing against him in the evidence, for the purpose of enabling the employee to explain any circumstances appearing in the evidence against him.

(o)

After the completion of the production of the evidence, the employee and the Presenting Officer may file written briefs of their respective cases within 15 days of the date of completion of the production of evidence.

(p)

If the employee does not submit the written statement of defence referred to in sub-regulation

(3)

on or before the date specified for the purpose or does not appear in person, or through the assisting officer or otherwise fails or refuses to comply with any of the provisions of these regulations, the Disciplinary Authority or the Inquiry Officer, as the case may be, may hold the inquiry ex-parte.

(q)

Whenever any Inquiry Officer, after having heard and recorded the whole or any part of the evidence in an inquiry ceases to exercise jurisdiction therein, and is succeeded by another Inquiry Officer which has, and which exercises, such jurisdiction, the Inquiry Officer so succeeding may act on the evidence so recorded by its predecessor, or partly recorded by its predecessor and partly recorded by itself:

Provided that if the succeeding Inquiry Officer is of the opinion that further examination of any of the witnesses whose evidence has already been recorded is necessary in the interest of justice, it may recall, examine, cross-examine and re-examine any such witnesses as herein before provided.

(9)

(i)

On the conclusion of the inquiry, the Inquiry Officer shall prepare a report which shall contain the following:

(a)

a gist of the articles of charge and the statement of the imputations of misconduct or misbehaviour;

(b)

a gist of the defence of the employee in respect of each article of charge;

(c)

an assessment of the evidence in respect of each article of charge;

(d)

the findings on each article of charge and the reasons therefor.

Explanation. - If, in the opinion of the Inquiry Officer, the proceedings of the inquiry establish any article of charge different from the original article of charge, it may record its findings on such article of charge.

Provided that the findings on such article of charge shall be recorded unless the employee has either admitted the facts on which such article of charge is based or has had a reasonable opportunity of defending himself against such article of charge.

(ii)

The Inquiry Officer, where it is not itself the Disciplinary Authority, shall forward to the Disciplinary Authority the records of inquiry which shall include-

(a)

the report of the inquiry prepared by it under clause (i) of this sub-regulation;

(b)

the written statement of defence, if any, submitted by the employee referred to in clause (i) of subregulation (8);

(c)

the oral and documentary evidence produced in the course of the inquiry;

(d)

written briefs referred to in clause (o) of sub-regulation (8), if any, and

(e)

the orders, if any, made by the Disciplinary Authority and the Inquiry Officer in regard to the inquiry.

62.

Action on the inquiry report.

(1)

The Disciplinary Authority, if it is not itself the Inquiry Officer, may, for reasons to be recorded by it in writing, remit the case to the Inquiry Officer for fresh or further inquiry and report and the Inquiry Officer shall thereupon proceed to hold the further inquiry according to the provisions of regulation 61, as far as may be.

(2)

The Disciplinary Authority, shall, if it disagrees with the findings of the Inquiry Officer on any article of charge, record its reasons for such disagreement and record its own findings on such charge, if the evidence on record is sufficient for the purpose.

(3)

If the Disciplinary Authority, having regard to the findings on all or any of the articles of charge, is of the opinion that any of the penalties specified in regulation 60 should be imposed on the employee, it shall notwithstanding anything contained in regulation 63, make an order imposing such penalty.

(4)

If the Disciplinary Authority having regard to its findings on all or any of the articles of charge, is of the opinion that no penalty is called for, it may pass an order exonerating the employee concerned.

63.

Procedure for imposing minor penalties.

(1)

Where it is proposed to impose any of the minor penalties specified in sub-clauses (a) to (e) of clause A of regulation 60, the employee concerned shall be informed in writing of the imputations of lapses against him and given an opportunity to submit his written statement of defence within a specified period not exceeding 15 days or such extended period as may be granted by the Disciplinary Authority and the defence statement, if any, submitted by the employee shall be taken into consideration by the Disciplinary Authority before passing orders.

(2)

Where however, the Disciplinary Authority is satisfied that an inquiry is necessary, it shall follow the procedure for imposing a major penalty as laid down in regulation 61.

(3)

The record of the proceedings in such cases shall include:

(a)

A copy of the statement of imputations of lapses furnished to the employee;

(b)

The defence statement, if any, of the employee; and

(c)

The orders of the Disciplinary Authority together with the reasons therefor.

64.

Communication of orders.

- Orders made by the Disciplinary Authority under regulation 62 or regulation 63 shall be communicated to the employee concerned, who shall also be supplied with a copy of the report of inquiry, if any.

65.

Common proceedings.

- Where two or more employees are concerned in a case, the Disciplinary Authority may make an order directing that the disciplinary proceedings against all of them may be taken in common proceedings.

66.

Special procedure in certain cases.

- Notwithstanding anything contained in regulation 61 or regulation 62 or regulation 63, the Disciplinary Authority may impose any of the penalties specified in regulation 60, if the facts on the basis of which action is to be taken have been established in a Court of Law or Court Martial or where the employee has absconded or where it is for any other reason impracticable to communicate with him or where there are other difficulties in observing the requirements contained in regulations 60, 68 and 69 and the requirements can be waived without injustice to the employee. In every case where all or any of the requirements of regulations 60, 68 and 69 are waived, the reasons for so doing shall be recorded in writing.

67.

Suspension.

(1)

An employee may be placed under suspension by the Competent Authority: -

(a)

Where disciplinary proceedings against him are contemplated or are pending; or

(b)

Where a case against him in respect of any criminal offence is under investigation, inquiry or trial.

(2)

An employee shall be deemed to have been placed under suspension by an order of the Competent Authority -

(a)

with effect from the date of his detention, if he is detained in custody, whether on a criminal charge or otherwise, for a period exceeding 48 hours;

(b)

with effect from the date of his conviction, if, in the event of a conviction for an offence, he is sentenced to a term of imprisonment and is forthwith not dismissed or removed or compulsorily retired consequent to such conviction.

Explanation. - The period of 48 hours referred to in clause (a) of this sub-regulation shall be computed from the commencement of the imprisonment after the conviction and for that purpose, intermittent periods of imprisonment, if any, shall be taken into account.

(3)

Where a penalty of dismissal, removal or compulsory retirement from service imposed upon an employee under suspension is set aside in appeal under these regulations and the case is remitted for further enquiry or action or with any other directions, the order of his suspension shall be deemed to have been continued in force on and from the date of original order of dismissal, removal or compulsory retirement and shall remain in force until further orders.

(4)

Where a penalty of dismissal or removal or compulsory retirement from service imposed upon an employee is set aside or declared or rendered void in consequence of or by a decision of a Court of Law and the Competent Authority, on a consideration of circumstances of the case, decides to hold a further enquiry against him on the allegations on which a penalty of dismissal, removal or compulsory retirement was originally imposed, the employee shall be deemed to have been placed under suspension by the Competent Authority from the date of the original order of dismissal, removal or compulsory retirement and shall continue to remain under suspension until further orders.

Provided that no such further enquiry shall be ordered unless it is intended to meet a situation where the Court has passed an order purely on technical grounds without going into the merits of the case.

(5)

An order of suspension made or deemed to have been made under this regulation may at any time be modified or revoked by the Competent Authority which made or is deemed to have made the order.

(6)

During such suspension, he shall receive subsistence allowance equal to:

(i)

fifty per cent of his substantive pay plus allowances thereon, for the first six months of suspension; and

(ii)

seventy-five per cent of his substantive pay plus allowances thereon for the period of suspension beyond six months.

Provided that the enhanced rate of subsistence allowance specified under sub-clause (ii) shall be admissible only if the enquiry is not delayed for reasons attributable to the concerned employee or any of his representatives.

Provided further that if no penalty under regulation 60 is imposed, the employee shall be refunded the difference between the subsistence allowance and the emoluments which he would have received but for such suspension, for the period he was under suspension, and that, if a penalty is imposed on him under regulation 60, no order shall be passed which shall have the effect of compelling him to refund such subsistence allowance. The period during which an employee is under suspension shall, if he is not dismissed or removed or compulsorily retired from service, be treated as period spent on duty or leave as the Competent Authority who passes the final order may direct.

68.

Vigilance cases.

- Notwithstanding anything contained in regulations 60 to 67 or any other regulation, the following additional provisions shall apply where it is alleged that an employee has been guilty of corrupt practices, namely:

(a)

Where it is alleged that an employee is possessed of disproportionate assets or that he has committed an act of criminal misconduct or where the investigation and proof of the allegation would require the evidence of persons who are not employees of the Authority or where, in the opinion of the Disciplinary Authority, the investigation into the allegations may, with the approval of the Competent Authority, be trusted to the Central Bureau of Investigation or the Central Vigilance Commission or any other such agency as may be approved by the Competent Authority.

(b)

If after considering the report of the investigation, the Disciplinary Authority is satisfied that there is a prima facie case for instituting disciplinary proceedings against the employee, it may send the investigation report to the Central Vigilance Commission or such other authority as may be decided by the Competent Authority from time to time in this behalf, for its advice whether disciplinary proceedings should be taken against the employee concerned.

(c)

If after considering the advice of the Central Vigilance Commission or other authority, as the case may be, the Disciplinary Authority is of the opinion that disciplinary proceedings should be instituted against the employee concerned, then notwithstanding the provisions of sub-regulation (2) of regulation 61, the enquiry under this regulation may be entrusted to a Commissioner for Departmental Enquiries or other person who may be nominated by the Central Vigilance Commission for this purpose.

(d)

The Inquiry Officer shall submit his report to the Disciplinary Authority and the report shall be forwarded by the Competent Authority to the Central Vigilance Commission for its advice as to whether the charge or charges as the case may be, can be considered to have been established and the penalty or penalties to be imposed under regulation 60 hereof. The penalty or penalties to be imposed shall be decided by the Disciplinary Authority after considering the advice of the Central Vigilance Commission.

Explanation. - An employee shall be deemed to be guilty of corrupt practices if he has committed an act of criminal misconduct as defined in Section 13 of the Prevention of Corruption Act, 1988 or he has acted for an improper purpose or in a corrupt manner or had exercised or refrained from exercising his powers with an improper or corrupt motive.

69.

Appeal.

(1)

An employee may appeal against an order imposing upon him any of the penalties specified in regulation 60 or order of suspension under regulation 67. The appeal shall lie to the Appellate Authority.

(2)

Every appeal shall comply with the following requirements:

(a)

it shall be written in Hindi or English or, if not written in Hindi or English, be accompanied by a translated copy in Hindi or English and shall be signed.

(b)

it shall be couched in polite and respectful language and shall be free from unnecessary padding or superfluous verbiage.

(c)

it shall contain all material statements and arguments relied on and shall be complete in itself.

(d)

it shall specify the relief desired.

(3)

An appeal shall be preferred to the Appellate Authority within 45 days from the date of receipt of the order appealed against. The Appellate Authority shall consider whether the findings are justified or whether the penalty is excessive or inadequate and pass appropriate orders. The Appellate Authority may pass an order confirming, enhancing, reducing or setting aside the penalty or remitting the case to the authority which imposed the penalty or to any other authority with such direction as it may deem fit in the circumstances of the case

Provided that -

(i)

if the enhanced penalty which the Appellate Authority proposed to impose is a major penalty specified in clause B of regulation 60 and an inquiry as provided in regulation 61 has not already been held in the case, the Appellate Authority shall direct that such an inquiry be held in accordance with the provisions of regulation 61 and thereafter consider the record of the inquiry and pass such orders as it may deem proper.

(ii)

if the Appellate Authority decides to enhance the punishment but an inquiry has already been held as provided in regulation 61, the Appellate Authority shall give a show cause notice to the employee as to why the enhanced penalty should not be imposed upon him and shall pass final order after taking into account the representation, if any, submitted by the employee.

Chapter VI

Other terms and condition of service

70.

Commencement of service.

- Save as otherwise provided by or under these regulations, "service" of an employee shall be deemed to commence from the working day on which an employee reports for duty in an appointment covered by the Unique Identification Authority of India (Appointment of Officers and Employees) Regulations, 2020 at the place and time intimated to him by the Appointing Authority:

Provided that if he reports in the afternoon, his service shall commence from the following day.

71.

Liability for service in or outside India.

- An employee of the Authority shall be liable to serve anywhere in India or outside India.

72.

Determination of service by notice.

(1)

An employee shall not leave or discontinue his service in the Authority without first giving notice to the Competent Authority, in writing of his intention to leave or discontinue the service.

(2)

The period of notice required shall be -

(a)

In the case of employees holding the post on regular basis, three months;

(b)

In the case of employees holding the post on probation, one month;

Provided the Competent Authority may waive the period of notice required under this sub-regulation for the reasons to be recorded in writing.

Provided further the employee shall not be entitled to set off any leave earned and not availed of by him against the period of such notice.

(3)

In the case of breach by an employee of the provisions of the sub-regulation (2), he shall be liable to pay to the Authority as compensation, a sum equal to his substantive pay for the period of notice required of him:

Provided that the payment of such compensation may be waived by the Competent Authority, at his discretion.

(4)

Notwithstanding anything contained in sub-regulation (1), the resignation of an employee shall not be effective, unless it is accepted by the Competent Authority. The Competent Authority may refuse to accept a resignation:

(a)

If disciplinary proceedings have been instituted against or are proposed to be instituted against the employee;

(b)

If the employee is under an obligation to serve the Authority for a specified period which has not yet expired;

(c)

The employee owes the Authority any sums of money; or

(d)

For any other sufficient ground to be recorded in writing.

Explanation 1. - Disciplinary proceedings shall be deemed to be instituted against an employee for the purposes of this sub-regulation, if he has been placed under suspension under these regulations or any notice has been issued to him asking him to show cause why disciplinary proceedings should not be instituted against him or any charge-sheet has been issued to him under these regulations and will be deemed to be pending till final orders are passed by the Disciplinary Authority.

Explanation 2. - The expression "month" used in this regulation shall be reckoned according to the English calendar and shall commence from the day following that on which notice is given by the employee.

Explanation 3. - A notice given by an employee under sub-regulation (1) above, shall be deemed to be proper only if he remains on duty during the period of the notice.

73.

Superannuation and retirement.

(1)

An employee of the Authority shall retire on attainment of such age as prescribed as retirement age for employees of corresponding grade and level of the Central Government from time to time:

Provided that the Authority shall, if it is of the opinion that it is in the public interest to do so, have the absolute right to retire any Government servant by giving him notice of not less than three months in writing or three month's pay and allowances in lieu of such notice:-

i. If he is in Group 'A' or Group 'B' service or post in a substantive, quasi-permanent or temporary capacity and had entered Government service before attaining the age of 35 years, after he has attained the age of 50 years;

ii. In any other case, after he has attained the age of fifty-five years:

Provided further that the Authority shall, if it is of the opinion that it is in the public interest to do so, have the absolute right to retire a Government servant in Group 'C' service or post, after he has completed thirty years' service by giving him notice of not less than three months in writing or three month's pay and allowances in lieu of such notice.

(2)

An employee, who attains the age of superannuation on any day other than the first day of any calendar month, shall retire on the last day of the month in which he completed his age of retirement.

(3)

An employee may, if he so desires, and subject to terms of appointment to the contrary, if any, retire from service on completion of twenty years of service in the Authority by giving three months' notice to the Authority in writing.

(4)

The Authority may also offer a scheme, subject to such terms and conditions as it may specify, to its employees for voluntary retirement from the services of the Authority.

(5)

When an employee retires from service either under the provisions of the proviso to sub regulation (1) or sub-regulation (3), he shall be eligible for such compensation and benefits as are admissible to the employees of the Central Government of corresponding grade and level from time to time.

(6)

Notwithstanding anything contained in these regulations, where an employee has balance leave of any kind, but not availed of as on the date of retirement, he may, at his option,

(a)

be permitted to avail of such leave preparatory for retirement, and on such condition, as applicable for the employees of the Central Government of corresponding grade and level from time to time, or

(b)

be paid such leave encashment as admissible to the employees of the Central Government of corresponding grade and level from time to time.

Explanation. - "Date of Retirement" means the date on which the employee attains the age of superannuation in accordance with the provisions of the regulation or the date on which he is retired by the Authority under sub-regulation (1) of the regulation or the date on which the employee voluntarily retires in terms of sub-regulation (3) or sub-regulation (4) of the regulation, as the case may be.

74.

Execution of bond, etc.

- Notwithstanding anything contained in these regulations, the Authority shall have the right to obtain undertakings/bonds from an employee for payment of liquidated damages relating to deputation on training or study leave or his failure to complete the required number of years of service in a particular post, as may be determined by the Authority from time to time.

75.

Retention of lien of the employees.

(1)

The Authority, at its discretion, may allow lien to an employee generally for a maximum period of two years consequent upon his appointment in another autonomous body, public sector enterprise or government department on direct recruitment basis and the same may be extended by another year in exceptional circumstances.

(2)

Regular employees, who are selected for foreign appointment with United Nations or international bodies on the basis of selection or nomination, may be allowed to retain lien on their regular posts for a period not exceeding five years provided the employee gives an undertaking that he or she shall return to India after the expiry of his or her tenure abroad as foreign assignment:

Provided that during the period of lien, the Authority shall not take any liability for payment of leave salary, gratuity, pension contribution etc. and the employee himself has to make arrangements for such payments.

76.

Treatment of unauthorised absence.

(1)

An employee who is absent from duty without any authority, shall not be entitled to the pay and allowances during the period of such absence. The unauthorised absence of this kind, apart from resulting in loss of pay and allowances for the period of such absence, shall also constitute a break in service entailing forfeiture of past service unless the break is condoned and treated as 'dies-non' by the Competent Authority.

(2)

The consequences of unauthorised absence from duty which is not condoned in any manner shall be as follows, namely:-

(a)

No pay and allowances are admissible during the period of unauthorised absence;

(b)

No increment or earned leave shall be counted for the period of such unauthorised absence;

(c)

No gratuity shall be given for the period of interruption in service caused by such unauthorised absence; and

(d)

Such period can be treated as dies-non.

77.

Hours of work and attendance.

(1)

Every employee shall comply with all instructions issued from time to time relating to attendance, arrival and departure, the period and hours of work for different categories of employees or to an employee and every employee shall be at work at the time fixed and specified by the Authority from time to time.

78.

Training.

(1)

An employee may be required to undergo such training as may be prescribed by the Competent Authority.

(2)

An employee charged with misconduct during the period of training may be withdrawn from training and should be liable for appropriate disciplinary proceedings, as the Appointing Authority deems fit. Penalty in such cases may include recovery of the amount spent on the training by the Authority.

79.

Holidays.

- The list of holidays as specified by the Central Government, from time to time, for different places in India shall apply to the offices of the Authority at respective place.

80.

Deputation of employees to join military service.

- The terms and conditions subject to which an employee may be permitted to join military service shall be determined by the Authority.

81.

Deputation of employees to other services.

(1)

Without prejudice to the provisions of regulation 80, no employee of the Authority may be deputed to serve under any other employer without the approval of the Competent Authority who shall determine the duration of such deputation and

the terms and conditions on which the deputation shall take effect:

Provided that no employee may be deputed to foreign service against his will.

(2)

Where the services of an employee of the Authority are placed at the disposal of a foreign employer, it shall be a condition of the deputation that the foreign employer shall, during the periods of such deputation, bear the entire cost of the services of the employee including the following, viz.,

(a)

Pay during joining time,

(b)

Travelling allowances payable to the employee to enable him to join his appointment under a foreign employer and to return to his appointment in the Authority on the termination of his deputation,

(c)

Leave earned during the period of deputation,

(d)

The foreign employer shall contribute towards employer's contribution in the National Pension System, an amount as may be determined by the Competent Authority, sufficient to cover the Authority's liability towards monthly contribution for the period the employee is on deputation.

(3)

The foreign employer may also be required to make a contribution towards any gratuity or other sum for which the employee may become eligible on his retirement, on such scale as may be fixed by the Competent Authority.

82.

Service certificate.

- A service certificate shall be issued on the request of an employee at the time of discharge, dismissal, termination of his or her service, resignation or retirement.

83.

Property of the Authority.

- Any material such as documents or information or reports generated by an employee or those received or obtained by an employee during the course of his official duty, from internal or external sources, shall be property of the Authority.

84.

Safety.

- Every employee shall be bound to observe safety guidelines as specified from time to time by the Authority in discharge of official duties and breach of guidelines shall be construed as misconduct and such employee shall be liable for disciplinary proceedings.

85.

Compliance of other instructions issued by the Authority.

- Every employee shall comply with such other instructions as may be issued by the Authority from time to time.

86.

Performance appraisal.

- In the matter of the performance appraisal of the employees of the Authority, the instructions issued by the Central Government shall be followed.

Chapter VII

General

87.

Other conditions of service.

- Other terms and conditions of service of the employee of the Authority with respect to which no express or implicit provision has been made in these regulations, shall be such as notified by the Authority through general or specific order.

88.

Powers to relax.

- Where the Authority is of the opinion that it is necessary or expedient so to do, it may, by order, and for reasons to be recorded in writing, relax any of the provisions of these regulations in respect of any class or category of persons.

The First Schedule

[See regulation 4]

Category of officers and employee and their level in pay matrix

Sl. No.

Classification

Name of the Post

Level in the Pay Matrix

1.

Group A

Chief Executive Officer

Not below 15

2.

Deputy Director General

14

3.

Assistant Director General

13

4.

Assistant Director General (Technology)

13

5.

Assistant Director General (Technology - DS

Level)

12

6.

Senior Principal

Private Secretary or

Principal Private Secretary

12 or

11

7.

Deputy Director

11

8.

Deputy Director (Technology)

11

9.

Assistant Director (Technology)

10

10.

Assistant Director (Official Language)

10

11.

Senior Accounts Officer

10

12.

Group B

Section Officer

8

13.

Technical Officer

8

14.

Assistant Accounts Officer

8

15.

Private Secretary

8

16.

Assistant Section Officer

6

17.

Steno

6

18.

Junior Translation Officer

6

19.

Group C

Accountant

5

20.

Hindi Typist

2

21.

Driver

2

The Second Schedule

[See regulation 15]

Medical Scheme

1. Outdoor Medical expenses. - (1) The employees shall be eligible to get medical reimbursement for themselves and declared members of their family.

Explanation. - For the purpose of this clause, the expression "family" has the same meaning as assigned to it in the Central Services (Medical Attendance) Rules, 1944.

(2)

The reimbursement of outdoor medical expenses during the year shall be limited to the actual expenses or one month's pay on 1st January of the year (Basic pay + Dearness Allowance), whichever is less, and the release of increment or promotion during the year shall not affect the limit as on 1st January:

Provided that aforementioned ceiling shall not apply in case of treatment for diseases such as Cancer, Diabetes, Mental diseases, Poliomyelitis, Cerebral Palsy and Spastics, Tubercular diseases, Leprosy, Thalassaemia Major, Hepatitis C and D and such other serious diseases as approved by the Authority for which special treatment facility is required.

(3)

The claim should be supported by Doctor's prescription and the original cash memos or bills for treatment by the Doctor and purchase of medicines.

(4)

For employees joining during the year, the annual entitlement shall be restricted on pro-rata basis.

(5)

The outdoor treatment shall be taken from the Authorised Medical Attendants or at authorised hospitals from the panel to be maintained by the Authority.

2. Indoor treatment. - (1) For the purpose of indoor treatment, the employees of the Authority shall be entitled for medical treatment at hospitals authorised by the Authority in this behalf and for this purpose cost of treatment including hospital accommodation, nursing home facility, etc., shall be as per the provisions of the Central Services (Medical

Attendants) Rules, 1944 as applicable to the Central Government employees drawing equivalent pay.

(2)

Treatment at authorised hospitals may be taken on the advice of the Authorised Medical Attendants, except in emergency.

Form - I

Declaration of Fidelity and Secrecy

(See sub-regulation 4 of regulation 30)

I do hereby declare that I will faithfully, truly and to the best of my skill and ability execute and perform the duties required of me as an employee of the Unique Identification Authority of India and which properly relate to the office or position held by me in or in relation to the said Authority. I further declare that I will not communicate or allow to be communicated to any person not legally entitled thereto any information relating to the affairs of the Authority or relating to the affairs of any person having any dealing with the Authority, nor will I allow any such person to inspect or have access to any record or document belonging to or in the possession of the Authority and relating to the business of the Authority or the business of any person having any dealing with the Authority.

Place:

Date :

(Signature)

Name in full

Post to which appointed

Signed before me:

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Translation